Received

Acknowledge
Communicate to the Navy
Department for its information

No 34. Mr. P. Smith

DEPT. OF STATE
Rec'd OCT 10

Ack Oct 14

Consulate of the U.S. A at Amoy China
July 30th 1867.

Honble W. H. Seward
Secretary of State
Washington D.C.

Sir

Referring to my Dispatches Nos 7. 19. 21. 22. 23 24, relating to the wreck of the American bark "Rover" I have now the honor to hand you under this cover Enclosure No 1. being the translation of a (No 1) Dispatch just received from the Viceroy of the Foh-Kien Province, and which is an answer to my communication to his Excellency of the copy of my Dispatch No 72 to the General and Taotai of Formosa already referred to you (Enclosure No 1 with my Dispatch No 23.)

Formosa tragedy
Rover's case.

Dispatch of the Vice-Roy promising prompt action.

Enclosure No 2 is the copy of my Dispatch (No 2) No 3 to Rear Admiral H. H. Bell Command-
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Enclosure
Amoy - China:
With Dispatch no 24.
relating to the death of
Lt. Commander Mac=
=kenzie. U.S. navy-
No 1.
July 5. 1867 -

commanding the U.S. Asiatic Squadron. In it I briefly show to the Admiral the probability of a prompt action on the part of the Chinese Authorities and I ask him to lend me his support should my presence in Formosa be required.

Copy of Dispatch 128 = to Admiral Bell - conveying various informations.

I have the honor to be

Sir

very respectfully

Your Obedient Servant.

Chas. W. Le Gendre

U.S. Consul.

Tung Chi 6th year, 6th moon, 24th day.

On the 19th of this 6th month I received your communication, stating that a vessel of your nation had been wrecked on the southern part of Formosa, and the crew murdered by the savages, and that you had seen the General Taotai and Prefect of Formosa and had requested them to attend to the matter and that they had promised verbally and by official communications to attend to it; and that on the 2nd day of the 5th moon of the present year you had received from them a communication in which they refused to attend to the affair; and that this case being one of great importance to both nations, it was necessary to request me to examine into its merits and interpose my authority.

I have received from you a copy of your correspondence with the authorities at Formosa.

You personally had an interview with us on

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on the subject and the authorities of Formosa had informed us that they would give their immediate attention to the matter. Afterwards, on the 23rd day of the 5th moon, the Genl and Taotai of Formosa advised us that the distance from "Liang Kiau" to "Kui chai Lok" is several tens of Li (chinese miles), that the jungle and forests were dense and dangerous, and that the Savages skulked in the bushes or in caves, and inasmuch as the place occupied by the Savages is not marked on the maps of China, the Soldiers are unable to proceed there and the object in view is a very difficult one to accomplish.

Now, with reference to the plundering and murdering although it is done by Savages who are not reckoned as Chinamen, and although it is not easy to seize them, still it must be done. It must not be said that the Country is not ours and therefore the matter be neglected.

Already has an order been despatched with haste compelling the authorities of Formosa to send Soldiers and to order the civil and military authorities to seize on the proper opportunities to properly conduct the case in a way that will enable them to rescue the survivors, to recover the bodies of the dead, to punish the murderers according to law, and to maintain terms of friendship among nations.

To the U.S. Consul of Amoy. China.

(Signed) Viceroy Ki
(do) Lieut Govr. Lei

U.S. Consulate Amoy July 30. 1867.

A true Copy of the original on file at this office.

Chs W. Le Gendre
U.S. Consul.

Amoy - China.

With Dispatch No. 34.

Copy of translation of a Dispatch from the Vice-Roy of the Fokien Province promising prompt action in the case of the Rover. The opinion expressed by the U.S. Consul as and respecting the obligation on the part of the Chinese Government to enforce order on the Savage territory in Formosa is endorsed.

No 1.

July 30th 1867.

Extract from a Dispatch received at the United States Consulate at Amoy, on the 20th of May 1867.

Legation of the United States
Peking April 23rd 1867

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I at once brought the Rover again to the attention of the Chinese Govt, and received the most earnest regrets for the murder, and such proffers of aid as it is in its power to give.

I hope you will do all you can in conjunction with the Chinese Authorities to bring the murderers to punishment for what they have done and to prevent such atrocities in the future

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Commending your zeal in this matter I have etc. etc. etc. (Signed) Anson Burlingame

Amoy - China.

With Enclosure no 2 in Dispatch no 34. to the Hon. Sec. of State.

Extract of orders received by the U.S. Consulate Amoy from the U.S. Minister at Peking in reference to the Rover Case.

No 2

July 30. 1867

Received **No 3.** **Copy.**

Consulate of the U.S. At Amoy China
July 30th 1867

Rear Admiral H. H. Bell
Commanding U.S. Asiatic Squadron
Shanghai China.

Sir

I have the honor to acknowledge the receipt of your dispatch dated Shanghai July 16th 1867 and I am much obliged to you for the valuable views of the "Rover's" case you give me therein. I have taken proper steps to call the attention of the viceroy of the Fohkien Province to such of them, as would interest him at the present time.

I now beg to submit the answer received (enclosure No 1) from the viceroy of the Fohkien Province to a communication made to him on the 20th inst., to gether with

Enclosure no 1. is Enclosure no 1 with Dispatch no 34 to State office.

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a copy of my despatch No. 7 to the General and Taotai of Taiwan enclosed to you in my dispatch No. 2 of June 30th 1867.

Baron de Méritens who on this occasion has acted as my Interpreter and Intermediary, had been requested to call the attention of the viceroy to three points, 1st, the necessity of the Chinese authorities taking immediate steps, 2nd their obligation to enable me to ascertain that such steps were taken, 3rd the great importance of locating a military settlement at the end of the island of Formosa so as to keep it clear from the savages infesting it.

On the 29th instant Baron de Méritens advised me that the viceroy had forwarded orders (by a special steamer) to the authorities at Taiwan to organize forthwith an expedition against the savages therein. That both the Governor and General of the Island would be responsible for the success of the operations, that in case they should fail they would be dismissed. That I had been invited to proceed to Formosa to receive by the hands of the Chinese, the unfortunate survivors, if any, of the "Rover's" crew and the bodies of those that have been killed. Of course it is expressly understood that I am going there as a mere spectator and that I have no jurisdiction or command over the Chinese forces, but I am expected to satisfy myself that they do what is required. The viceroy will write me by the "Yeso" to invite me to proceed to Formosa for that object.

Nothing definite has yet been settled as to the third point, but I am convinced it can be settled as the two first ones. If on the 6th proximo it is not carried I shall call in person upon

upon the viceroy, and I greatly hope to succeed. The Tartar General has never failed yet to support me; and I depend a great deal upon him for success. Of course the aid of Baron de Meritens in the case has been of material importance and without him I believe that I would have failed.

Under these circumstances I have asked Capt. Febiger, now in Amoy, whether he would feel authorized to afford me a passage to Formosa, in case I would proceed there in two or three weeks for the purpose I have explained above; or if he would have to wait for orders from you. His answer was that he had no authority to go to Formosa but would have to refer the matter to you; having thus conferred with Capt Febiger on the subject it has been agreed between us that I should

write

write you directly on the subject.

I beg to remark, Sir, that in this case I have not gone beyond the limits of my power, and that in simply persuading the Chinese authorities, I have only carried out the instructions received from the U.S. Minister at Peking. Indeed the answer he sent to my despatch No. 3 of April 1st, asking for instructions was most explicit (Enclosure No. 2).

Since I have carefully communicated to him my correspondence on the subject, and he has not once censured the course I have taken, and truly believing that it would be of great importance for us to obtain now, from the Chinese Government a redress which every one I have seen yet encourages me to seek, and which if we do obtain will greatly add to the prestige of our flag in the East, I have used every effort to succeed, and now that I firmly believe I am almost certain of doing so,

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I come to beg you to lend me your support, by affording me the means of going to Formosa in the manner I have applied for to Captain Febiger.

Inclosing this I respectfully beg to state, that by the time your answer to this dispatch, comes to hand, it will be about time for me to leave for Formosa, and my impression is, that my presence will be required there for about six weeks.

I have the honor to be,
Sir,
with great respect
Your Obedient Servant
Chs. W. Le Gendre
U.S. Consul.

Mr. I. Smith

DEPT. OF STATE
REC'D DEC 4 '67

Ackn. [illegible] enclosures to [illegible] Rear [illegible]

Received No. 35.

Encl. 9

Consulate of the United States of America
at Amoy China September 4th 1867.

To
The Honble. W. H. Seward
Secretary of State
Washington D.C.

Sir

I beg to hand you under this cover enclosures Nos. 1. 2. 3. 4 — being copies of my correspondence with His Excellency the Minister of the United States at the Court of Peking, relating to the "Rover's" case. Also with Rear Admiral H H Bell, on the same.

I have the honor to be
Sir
Very respectfully
Your Obedient Servant
Chs. W. Le Gendre
U.S. Consul.